

## Arun Gupta v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 19 May 2025 · 2025:AHC-LKO:29441-DB · Writ-C No. 3949 of 2025 · **Writ disposed of; connection to be considered on dues clearance and clause 4.4 indemnity, prepaid if granted.**

### HEADNOTE

An occupant in part possession, amid a family dispute and outstanding dues, may have a new-connection application considered under clause 4.4 of the U.P. Electricity Supply Code, 2005 on clearing dues and furnishing an indemnity bond; if granted, the connection shall be prepaid. The order confers no title or possession.

### FACTUAL SUMMARY

Arun Gupta sought a new electricity connection for premises of which he claimed occupation. On 25 April 2025 the Lucknow Bench directed the corporation to inspect whether he was in possession. Inspection showed he occupied part of the premises. The corporation opposed a connection because electricity dues stood on the premises and a family dispute existed among occupants. The petitioner offered to clear the dues and to submit an indemnity bond under clause 4.4 of the U.P. Electricity Supply Code, 2005.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

#### HOLDING

Where inspection shows the applicant in part possession of the premises, outstanding electricity dues and a family dispute among occupants are not a bar to considering a new-connection application under clause 4.4 if the applicant clears the dues, furnishes an indemnity bond, and there is no other legal impediment (including any injunction). If a connection is granted it shall be prepaid. The order confers no title or possession and does not affect third-party rights. Clause 4.4 principles, though developed in landlord-tenant cases, apply because a person cannot live without electricity. ¶ 5-8

### PRINCIPLE TAGS

**clause-4.4-occupant-connection-on-indemnity-bond** An occupant in part possession, amid a family dispute and outstanding dues, may have a new-connection application considered under clause 4.4 of the U.P. Electricity Supply Code, 2005 on clearing dues and furnishing an indemnity bond; if granted, the connection shall be prepaid.. ¶ 5-8

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — TITLE OR POSSESSION OF THE PREMISES

Order confers neither and does not affect rights of private opposite parties, third parties, or pending proceedings. ¶ 7

#### NOT DECIDED — EXISTENCE OF ANY INJUNCTION AGAINST THE PETITIONER

If an injunction exists, no benefit of the order can be extended. ¶ 7

### TABLE OF AUTHORITIES

| AUTHORITY                                                               | PROPOSITION | HOW TREATED | CITED BY | TREATMENT |
|-------------------------------------------------------------------------|-------------|-------------|----------|-----------|
| <i>Seema Mansoor v. U.P. Power Corporation Ltd.</i><br>2014 (6) ADJ 672 |             |             | 8        | Referred  |

| AUTHORITY                                                               | PROPOSITION | HOW TREATED | CITED BY | TREATMENT |
|-------------------------------------------------------------------------|-------------|-------------|----------|-----------|
| <i>Sri Chandu Khamaru v.</i><br><i>Nayan Malik</i><br>(2011) 12 SCC 314 |             |             | 8        | Referred  |

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